

THE STATE OF TEXAS
COUNTY OF TARRANT

CONTRACT FOR ELECTION SERVICES BETWEEN THE
TARRANT COUNTY ELECTIONS ADMINISTRATOR
AND THE CITY OF BEDFORD

THIS CONTRACT for election services is made by and between the Tarrant County Elections Administrator, hereinafter referred to as "Elections Administrator" and the City of Bedford, hereinafter referred to as "City"

This contract is made pursuant to Texas Election Code Section 31.092(a) for the verification of a "LOCAL OPTION" petition to be submitted to the City pursuant Texas Municipal Election Law 15.03.

RECITALS

The City received the submission of the petition on December 20, 2019 and desires assistance from the Elections Administrator in verifying the petition.

The County owns an elections management/voter registration system that facilitates the tracking and verification of petitions and the County Elections Department has expertise in checking petitions.

NOW THEREFORE, in consideration of the mutual covenants, agreements, and benefits to the parties, IT IS AGREED as follows:

I GENERAL PROVISIONS

The City shall receive the petition filings as required by Texas Municipal Election Law 15.03. The City shall provide to the Elections Administrator a photocopy of the submitted petition pages to facilitate the verification process. The City shall retain the original copies of the filed petition.

The Tarrant County Elections Administrator shall check the names of the signers of the petition in accordance with Election Code Section 277.002 to determine whether the signers are qualified voters of the City and otherwise eligible to sign the petition. The City agrees to pay the Tarrant County Elections Administrator for equipment, supplies, services, and administrative costs as provided in this agreement. The Elections Administrator shall provide advisory services in connection with decisions to be made and actions to be taken by the officers of the City as necessary.

The City desires to use a statistical sampling method to verify the petition as allowed by Election Code Section 277.003 and asks the Elections Administrator, upon delivery of the petition, to verify 50% of the signatures. The City is responsible for determining the minimum number of signatures required for the petition to pass and will specify such number at the time of delivery of the petition to the Elections Administrator. In accordance with Election Code Section 277.004, it is agreed that the City should follow any requirements for the validity or verification of petition signatures in addition to those prescribed in Chapter 277 of the Texas Election Code that are prescribed by a home-rule city charter provisions or a city ordinance are effective only if the charter provision or ordinance was in effect September 1, 1985.

Upon completion of the verification process, the Elections Administrator shall certify to the City the number of qualified voters signing the petition.

II LEGAL DOCUMENTS

The City shall be responsible for the preparation, adoption, and publication of any required election orders, resolutions, notices, and any other pertinent documents required by the Texas Election Code and/or the City's governing body, charter, or ordinances.

Preparation of the necessary materials for notices and official ballots shall be the responsibility of the City, including translation to languages other than English.

The City shall be responsible for making the submission, if any is required or desired, to the United States Department of Justice, pursuant to the Voting Rights Act of 1965, as amended.

III CONTRACT EXPENSES AND ALLOCATION OF COSTS

The City agrees to reimburse the Elections Administrator for the actual costs of verifying the petition including, but not limited to, the actual costs of supplies, printing, programming, and temporary personnel. The City agrees to reimburse the Elections Administrator for wages paid to his contract employees for duties performed during normal business hours. The City further agrees to pay the Elections Administrator an administrative fee equal to ten percent (10%) of its total billable costs in accordance with Section 31 100(d) of the Texas Election Code.

The Elections Administrator shall deposit all funds payable under this contract into the appropriate fund(s) within the county treasury in accordance with Election Code Section 31 100

The Elections Administrator agrees that, in an effort to reduce costs, the City may provide one or more City employees to assist with the verification process at the Elections Administrator's office.

IV RECORDS OF THE VERIFICATION PROCESS

The Elections Administrator is hereby appointed general custodian of the photocopied petition pages and all records of the verification process as authorized by Section 31 096 of the Texas Election Code.

Access to the election records shall be available to the City as well as to the public in accordance with applicable provisions of the Texas Election Code and the Texas Public Information Act. The election records shall be stored at the offices of the Elections Administrator or at an alternate facility used for storage of county records. The Elections Administrator shall ensure that the records are maintained in an orderly manner so that the records are clearly identifiable and retrievable.

Records of the election shall be retained and disposed of in accordance with the provisions of Section 66.058 of the Texas Election Code. If records of the election are involved in any pending election contest, investigation, litigation, or open records request, the Elections Administrator shall maintain the records until final resolution or until final judgment, whichever is applicable. It is the responsibility of the City to bring to the attention of the Elections Administrator any notice of pending election contest, investigation, litigation or open records request which may be filed with the City.

V MISCELLANEOUS PROVISIONS

1. The Elections Administrator shall file copies of this document with the Tarrant County Judge and the Tarrant County Auditor in accordance with Section 31.099 of the Texas Election Code.
2. Nothing in this contract prevents any party from taking appropriate legal action against any other party and/or other election personnel for a breach of this contract or a violation of the Texas Election Code.
3. This agreement shall be construed under and in accord with the laws of the State of Texas, and all obligations of the parties created hereunder are performable in Tarrant County, Texas.
4. In the event that one or more of the provisions contained in this Agreement shall for any reason be held to be invalid, illegal, or unenforceable in any respect, such invalidity, illegality, or unenforceability shall not affect any other provision hereof and this agreement shall be construed as if such invalid, illegal, or unenforceable provision had never been contained herein.

5. All parties shall comply with all applicable laws, ordinances, and codes of the State of Texas, all local governments, and any other entities with local jurisdiction.
6. The waiver by any party of a breach of any provision of this agreement shall not operate as or be construed as a waiver of any subsequent breach
7. Any amendments of this agreement shall be of no effect unless in writing and signed by all parties hereto

VI. COST ESTIMATES AND DEPOSIT OF FUNDS

The total estimated obligation for the City under the terms of this agreement is \$2,738.70. The City agrees to pay the Tarrant County Elections Administrator a deposit of \$1,780.15 which is approximately 65% of the City's estimated obligation under this contract, no later than 10 days after the City's execution of this contract. The exact amount of the City's obligation under the terms of this agreement shall be calculated after the completion of the petition verification, and if the amount of the City's total obligation exceeds the amount deposited, the City shall pay to the Elections Administrator the balance due within 30 days after the receipt of the final invoice from the Elections Administrator. However, if the amount of the City's total obligation is less than the amount deposited, the Elections Administrator shall refund to the City the excess amount paid within 30 days after the final costs are calculated.

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VII. CONTRACT ACCEPTANCE AND APPROVAL

IN TESTIMONY HEREOF, this contract, its multiple originals all of equal force, has been executed on behalf of the parties hereto as follows, to-wit:

- (1) It has on the 18 day of DECEMBER 2019 been executed by the Tarrant County Elections Administrator pursuant to the Texas Election Code so authorizing;
- (2) It has on the 23rd day of December, 2019 been executed on behalf of the City of Bedford by the City Manager;

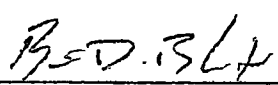
ACCEPTED AND AGREED TO BY THE TARRANT COUNTY ELECTIONS ADMINISTOR:

APPROVED:

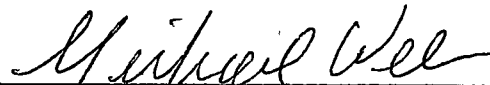

HEIDER GARCIA, ELECTIONS ADMINISTRATOR
(seal)

ACCEPTED AND AGREED TO BY THE CITY OF BEDFORD:

APPROVED:


BRIAN D. BOSSHARDT, CITY MANAGER

ATTEST:


MICHAEL WELLS, CITY SECRETARY
(seal)